



CHAPTER xviii.

An Act to further postpone the times for the repayment of moneys borrowed by the Swansea Harbour Trustees and for other purposes. A.D. 1919.
[3rd June 1919.]

WHEREAS the Swansea Harbour Trustees (in this Act called "the Trustees") were incorporated by the Swansea Harbour Act 1854 and further powers have been conferred upon them by the Swansea Harbour Acts 1854 to 1916:

And whereas the Trustees have from time to time granted mortgages for short terms at various rates of interest and the principal moneys secured thereby are repayable in the year nineteen hundred and nineteen and in each succeeding year up to and including the year nineteen hundred and twenty-nine:

And whereas by the Swansea Harbour Act 1916 (in this Act called "the Act of 1916") after reciting that the trade of the port and harbour of Swansea had been adversely affected by the present war and that owing thereto and to the financial situation created by the war the Trustees were for the time being unable to re-borrow the sums necessary to repay certain of the said mortgages it was provided that the principal moneys becoming due under any of such mortgages between the thirtieth day of June nineteen hundred and sixteen and the second day of January nineteen hundred and nineteen should not be repayable until the first day of July nineteen hundred and nineteen:

And whereas by reason of the continuance of the war the trade of the said port and harbour has since the passing of the Act of 1916 continued to be adversely affected and owing thereto and to the said financial situation the Trustees are still unable to re-borrow the moneys necessary to repay the principal moneys falling to be repaid under the mortgages in respect of which

A.D. 1919. relief was given by the Act of 1916 or the principal moneys falling to be repaid in the present year under other mortgages granted by the Trustees and it is improbable that the Trustees will be able to re-borrow the moneys necessary to repay the principal moneys falling to be repaid after the present year under the other mortgages granted by the Trustees at the dates at which such last-mentioned principal moneys are repayable thereunder :

And whereas under the powers of the Swansea Harbour Act 1901 (in this Act called "the Act of 1901") the mayor aldermen and burgesses of the county borough of Swansea (in this Act called "the corporation") have advanced to the Trustees sums amounting to one hundred and fifty thousand pounds and mortgages for the repayment of such sums have been granted by the Trustees to the corporation :

And whereas it is expedient that the dates of repayment of the principal moneys secured by all the said mortgages should be postponed to such extent as is by this Act provided :

And whereas in consequence of circumstances arising out of the present war the cost of carrying on the undertaking of the Trustees has largely increased and it is expedient in order to enable the Trustees to meet such increased cost that the rents rates tolls dues and charges leviable by the Trustees in respect of vessels and goods under the Swansea Harbour Acts 1854 to 1916 should be increased and that such further provision should be made with respect to such matters as is contained in this Act :

And whereas it is expedient that the other powers contained in this Act should be granted :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited for all purposes as the Swansea Harbour Act 1919 and the Swansea Harbour Acts 1854 to 1916 and this Act may be cited together as the Swansea Harbour Acts 1854 to 1919.

Short and
collective
titles.

2. In this Act—

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The expression “the Trustees” means the Swansea Harbour Trustees;

Interpretation.

The expression “the corporation” means the mayor aldermen and burgesses of the county borough of Swansea; and

The expression “the Act of 1901” means the Swansea Harbour Act 1901.

3. The provisions of the Harbours Docks and Piers Clauses Act 1847 except sections 84 and 85 thereof and except so far as such provisions are varied by this Act are hereby incorporated with and form part of this Act:

Incorporation of Harbours Docks and Piers Clauses Act 1847.

Provided that the following expressions used in the Harbours Docks and Piers Clauses Act 1847 shall have the following respective meanings (that is to say):—

The expressions “packet boat” and “Post Office packet” mean respectively a vessel employed by or under the Post Office or the Admiralty for the conveyance under contract of postal packets as defined by the Post Office Act 1908 and the expression “Post Office bag of letters” means a mail bag as defined by the same Act:

Provided further that nothing in the Harbours Docks and Piers Clauses Act 1847 or in this Act shall extend to exempt from rates or duties any such vessel as aforesaid if she also conveys passengers or goods for hire.

4. Every mortgage granted by the Trustees before and outstanding at the passing of this Act shall be read and construed and have effect as if the date on which the principal moneys secured thereby are repayable was postponed for a period of five years. Provided that as from the date on which the principal moneys secured by any such mortgage would but for the passing of this Act have become due for repayment until the actual date of repayment thereof interest shall be payable thereon at the rate of five pounds per centum per annum. Provided also that if at any time before the repayment of the principal moneys secured by any such mortgage default shall be made in the payment of any interest payable on the principal moneys secured by such mortgage or of the interest on any stock issued by the Trustees then and in such case (unless the holder of such mortgage shall otherwise agree) the principal

Postponement of redemption of mortgages.

A.D. 1919. moneys secured thereby shall notwithstanding the foregoing provisions of this Act be deemed to have become due for repayment at the date on which the same would have been so due if this Act had not been passed.

For protection of corporation.

5. Nothing in the section of this Act of which the marginal note is "Postponement of redemption of mortgages" shall derogate from or prejudice the terms of the agreement dated the sixteenth day of February nineteen hundred and sixteen and made between the corporation and the Trustees save and provided that any date to which any moneys are by the said agreement to accrue or on which any moneys are thereunder or under section 48 of the Act of 1901 payable by the Trustees to the corporation shall be by virtue of and subject to the provisions of the said section of this Act postponed for a period of five years.

Postponement of corporation sinking fund.

6. Notwithstanding anything contained in section 54 of the Act of 1901 the corporation shall not be required to make any payment to the sinking fund which under that section is to be provided for the repayment of any moneys borrowed by the corporation under the provisions of paragraph (b) of section 49 of that Act until the expiration of five years from the first date on which the corporation are by the said section 54 liable to make payments to such sinking fund.

Power to sell lands and other property.

7.—(1) The Trustees may sell the offices and buildings of the Trustees in Victoria Road Swansea known as the Old Harbour Offices and any lands buildings vessels or property from time to time acquired by or vested in the Trustees for the purposes of or in connexion with their undertaking and which shall not for the time being be required for such purposes for such consideration and on such terms and conditions as the Trustees think fit.

(2) All moneys received by the Trustees as consideration for any lands buildings vessels or property sold under the powers of this section shall be applied only to purposes of the Trustees to which capital is properly applicable.

Increase of rents rates tolls dues and charges.

8. As from the passing of this Act the Swansea Harbour Acts 1854 to 1919 shall be read and construed as if the amount of any rent rate toll due or charge which the Trustees are by those Acts authorised to charge in respect of vessels and goods were in each case increased by fifty per centum.

9. If the undertaking of the Trustees is acquired otherwise than by agreement by any public body or trustees the Trustees shall not be entitled to make any claim in respect of the powers conferred upon them by the section of this Act of which the marginal note is "Increase of rents rates tolls dues and charges" Provided that nothing in this section shall prejudice the rights of any person entitled to any mortgage of or charge secured upon the undertaking or revenue of the Trustees or any part thereof.

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Provision in case of future purchase.

10. For the protection of the Great Western Railway Company (in this section called "the company") the following provision shall unless otherwise agreed between the company and the Trustees apply and have effect (that is to say):—

For protection of Great Western Railway Company.

Nothing in this Act shall be deemed to increase any sums payable by the company to the Trustees under the agreement dated the fourth day of June eighteen hundred and sixty-two set out in the schedule to and confirmed by the Swansea Harbour Act 1862.

11. In addition to the powers of making byelaws contained in any other enactment enabling the Trustees to make byelaws the Trustees may subject to the provisions of this Act from time to time make such byelaws as they shall think fit for all or any of the following purposes:—

Byelaws.

For removing and preventing obstructions or impediments at in or on the docks piers quays roads railways bridges or works of the Trustees or within the harbour;

For securing the proper use and for the protection of any parts of the harbour docks or works of the Trustees appropriated to any particular trades persons companies vessels or goods or class of vessels or goods and for securing the safety of such persons vessels and goods;

For regulating the speed at which vessels may proceed in the harbour and the berthing or removing of vessels lying in any part thereof;

For regulating the user of vehicles and the conduct and behaviour of carters and drivers thereof at the harbour docks or works of the Trustees;

and such byelaws shall be published in the manner prescribed by the Harbours Docks and Piers Clauses Act 1847.

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Any person who offends against any such byelaw shall be liable for every offence to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings for every day during which such offence shall continue after conviction therefor and such penalties shall be without prejudice to any liability for any damages which may be recoverable by the Trustees or by any person or body for any loss or injury to him or them or to his or their property consequent on such offence.

Confirmation
of byelaws.

12. Section 85 of the Harbours Docks and Piers Clauses Act 1847 shall cease to apply to any byelaws made by the Trustees after the passing of this Act but no such byelaw shall come into operation until it has received the allowance and confirmation of the Board of Trade and that allowance and confirmation shall be sufficient for all purposes.

Annual
accounts to
be sent to
Board of
Trade.

13. The Trustees shall within one month after sending to the clerk of the peace a copy of their annual accounts send a copy of the same to the Board of Trade and the Trustees shall as from the expiration of that month be liable to a penalty not exceeding twenty pounds for every week or part of a week during which they refuse or neglect to comply with this section.

Costs of Act.

14. All the costs charges and expenses of applying for obtaining and passing this Act and incidental thereto shall be borne and paid by the Trustees out of the Swansea Harbour Fund.

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